



# Armada Kalamunda Group

## Release of Information Guideline

### 1. Purpose

All WA Health employees have a duty to maintain confidentiality of patient information. There are some instances where patient information is to be released under the relevant legislation or to support the continuation of patient care. This guideline outlines the clerical responsibilities for each type of request for information.

### 2. Applicability

This guideline applies to all Health Information Management Services and applicable to all clerical staff across the Armada Kalamunda Group.

### 3. Guidelines

Clerical staff are authorised to release information in certain circumstances. Some general principles are outlined below:

- All requests to be received in writing to verify the legitimacy of the requestor.
- No information created by other hospitals, GP's or other agencies is to be released.
- Requests for patient personal details such as phone number or address is not to be actioned without patient consent.
- Third party information is not to be released.
- It is preferred that only typed documents are released, sending handwritten notes should be avoided unless specifically requested and no other information is available. Check with Clerical Coordinator before sending.

The Digital Medical Record is a WA Health record which contains other hospitals episodes of care and documentation. AKG is not to share any other sites information with requestors

### 3.1 Types of requests

Only action written requests received via fax or email to AHS, HIMS Medical Records [AHS.HIMSMedicalRecords@health.wa.gov.au](mailto:AHS.HIMSMedicalRecords@health.wa.gov.au). If phone call requests are received direct the requestor to submit a written request to verify legitimacy of the request.

| Requestor                                                            | Information Requested/ Instructions                                                                                                                                                                                                                                                                                                                                                        | Consent                                                                                                                                                                                                                                                                                                                       |
|----------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Coroner/State Mortuary                                               | Refer to <a href="#">Coroners Request to Produce Health Record Procedure</a>                                                                                                                                                                                                                                                                                                               | NA                                                                                                                                                                                                                                                                                                                            |
| Communicable Disease Control Directorate (CDCD) WA Health            | Copy of the medical certificate, cause of death only.                                                                                                                                                                                                                                                                                                                                      | NA<br>Covered under Public Health Regulations Act (2017)                                                                                                                                                                                                                                                                      |
| DonateLife WA Donation Specialist Coordinator                        | <ul style="list-style-type: none"> <li>Copy of the medical certificate, cause of death.</li> <li>AKMR 6 Death in Hospital</li> </ul>                                                                                                                                                                                                                                                       | <p>No.</p> <p>Phone call received from DonateLife WA or at the request of AKG Clinical Nurse Specialist – DonateLife WA.</p> <p>Send required information immediately.</p> <p><a href="mailto:donorcoordinators@health.wa.gov.au">donorcoordinators@health.wa.gov.au</a></p> <p>PH: 1800 950 155</p> <p>FAX: 1800 950 199</p> |
| GPs and Specialists                                                  | <ul style="list-style-type: none"> <li>Discharge Summaries</li> <li>Operation Reports</li> <li>Anaesthetic Charts</li> <li>Outpatient Clinic Letters</li> <li>AKG Reports/Results</li> <li>MDT Management Plans</li> <li>Progress notes (No mention of 3<sup>rd</sup> Party and can be sent if no other information is available or if specifically asked for)</li> </ul>                  | <p>Yes</p> <p>Check if patient has listed GP on WebPAS- OK to release.</p> <p>If GP is not listed on WebPAS. Patient consent is required, signature needs to be within the past 12 months.</p>                                                                                                                                |
| Hospital (Private or Public, including Interstate and international) | <ul style="list-style-type: none"> <li>MR Forms</li> <li>Discharge Summaries</li> <li>Operation Reports</li> <li>Anaesthetic chart</li> <li>Outpatient Clinic Letters</li> <li>AKG Reports/Results</li> <li>MDT Management Plans</li> <li>Progress notes (No mention of 3<sup>rd</sup> Party and can be sent if no other information is available or if specifically asked for)</li> </ul> | <p>No.</p> <p>Consent is implied to support patient care</p>                                                                                                                                                                                                                                                                  |
| Prison Medical Officer                                               | <ul style="list-style-type: none"> <li>Discharge Summaries</li> <li>Operation Report</li> </ul>                                                                                                                                                                                                                                                                                            | No                                                                                                                                                                                                                                                                                                                            |

|                                                          |                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                        |
|----------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                                          | <ul style="list-style-type: none"> <li>• Outpatient Clinic Letter</li> <li>• AKG Reports /Results</li> <li>• MDT Management Plans</li> <li>• Progress notes (No mention of 3<sup>rd</sup> Party and can be sent if no other information is available or if specifically asked for)</li> </ul>                                                                                         | <p>WebPAS MUST reflect prisoner status</p> <p>Request must be on an official Department of Justice letterhead</p>                                                                                                                                      |
| Requests for Minors (Under 16)                           | <ul style="list-style-type: none"> <li>• Discharge Summaries</li> <li>• Operation Reports</li> <li>• Anaesthetic Chart</li> <li>• Outpatient Clinic Letters</li> <li>• AKG Reports/Results</li> <li>• Progress notes (No mention of 3<sup>rd</sup> Party and can be sent if no other information is available or if specifically asked for)</li> </ul>                                | Minors (under 16) do not require parent/guardian consent, if request is from GP stated in patient demographics                                                                                                                                         |
| Anonymous patient within WebPAS                          | <ul style="list-style-type: none"> <li>• MR forms (Dependant on Requestor)</li> <li>• Discharge Summaries</li> <li>• Operation Report</li> <li>• Outpatient Clinic Letter</li> <li>• AKG Reports/Results</li> <li>• Progress notes (No mention of 3<sup>rd</sup> Party and can be sent if no other information is available or if specifically asked for)</li> </ul>                  | Yes                                                                                                                                                                                                                                                    |
| Hospital/ University Clinical Trials                     | <ul style="list-style-type: none"> <li>• MR Forms</li> <li>• Discharge Summaries</li> <li>• Operation Reports</li> <li>• Outpatient Clinic Letters</li> <li>• AKG Reports/Results</li> <li>• Progress notes (No mention of 3<sup>rd</sup> Party and can be sent if no other information is available or if specifically asked for)</li> </ul>                                         | <p>Yes</p> <p>Must contain patient consent. This consent is valid for the life of the trial.</p>                                                                                                                                                       |
| Patient or relative/other individuals/ Next of Kin (NOK) | <ul style="list-style-type: none"> <li>• If a patient wants a discharge summary only, MREC can post to address as in WebPAS "patient demographics"</li> <li>• Provide patient with a copy of the <a href="#">FOI application form</a></li> <li>• Refer requests to FOI</li> <li>• Alternatively advise patient to contact their GP to request information on their behalf.</li> </ul> | Anything beyond a discharge summary, refer to FOI.                                                                                                                                                                                                     |
| WAVSS I Department of Infectious Diseases                | <ul style="list-style-type: none"> <li>• Discharge Summaries</li> <li>• Progress notes explaining adverse event</li> <li>• Outpatient Clinic Letters surrounding adverse event</li> <li>• Any other clinical details / follow up and management adverse event</li> <li>• Vaccination status</li> </ul>                                                                                | <p>No</p> <p>Memorandum of Understanding (MOU) exists with WAVSS to release documentation should a request be received. It is an offence NOT to notify or provide requested information.</p> <p>Covered under Public Health Regulations Act (2017)</p> |

|                                             |                                                                                                                                                                                                                                                                                                                                                                                              |    |
|---------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----|
| Silverchain and Nursing and Aged Care Homes | <ul style="list-style-type: none"> <li>• Discharge Summaries</li> <li>• Operation Report</li> <li>• Outpatient Clinic Letters</li> <li>• AKG Reports/Results</li> <li>• Wound Management Plan</li> <li>• Insulin Management Plan</li> <li>• Progress notes (No mention of 3<sup>rd</sup> Party and can be sent if no other information is available or if specifically asked for)</li> </ul> | No |
|---------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----|

### 3.2 Freedom of Information / Medico Legal

Refer the following requests to Freedom of Information for actioning AKG, FOI

[AKG.FOI@health.wa.gov.au](mailto:AKG.FOI@health.wa.gov.au)

| Freedom of Information | AKG, FOI <AKG.FOI@health.wa.gov.au>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
|------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                        | <ul style="list-style-type: none"> <li>• Public Trustee / Guardian and State Administrative Tribunal / Administrative Appeals Tribunal</li> <li>• Staff</li> <li>• Police – subpoenas, summonses, orders to produce (OTP)</li> <li>• Insurance Companies</li> <li>• Solicitor/Lawyers – subpoenas, summonses</li> <li>• Workers Compensation (including Certificates of Capacity)</li> <li>• Department for Child Protection and Family Support (DCP) signed Section 23 (Refer to 7.15)</li> <li>• School Psychologists</li> <li>• Chief Psychiatrists</li> <li>• Mental Health Law Centre</li> <li>• Patient/Family Requesting Own Medical Records</li> <li>• Centrelink</li> <li>• Coroner – Coroner's Court, Coronial Investigation Squad, State Mortuary</li> <li>• Criminal Injuries Compensation</li> <li>• Australian Health Practitioners Regulation Agency (APHRA)</li> <li>• Ombudsman</li> </ul> |

## 4. Miscellaneous requests

### 4.1 External community pharmacy request

Medical Records do not send ANY patient information to pharmacies regarding medication enquiries. Advise the community pharmacy they are required to contact AKG pharmacy.

### 4.2 Referrals

Any referrals received are to be forwarded by email to:

AKG, Referrals [akg.referrals@health.wa.gov.au](mailto:akg.referrals@health.wa.gov.au)

#### 4.3 Change of patient or doctor details

For any changes to patient's demographic details or doctors details / practice received via phone are to forward to AKG, WebPAS & NaCS Support  
[AKG.WebPAS&NaCSSupport@health.wa.gov.au](mailto:AKG.WebPAS&NaCSSupport@health.wa.gov.au)

### 5. Legislative context

The following documents are required to give effect to this guideline:

- [Freedom of Information Act 1992](#)
- [Children and Community Services Act 2004](#)
- [Mental Health Act 2014](#)
- [Public Health Regulations Act 2017](#)

### 6. Supporting information

The following documents support the implementation of this procedure:

- [AKG Coroners Request to Produce Health Record Procedure](#)
- [EMHS: 10 Health Record Access and Disclosure](#)
- [Patient Confidentiality](#) fact sheet, Department of Health Legal and Legislative Services
- [AKG Organ and Tissue Donation Procedure](#)
- [Subpoenas and Summonses](#) fact sheet, Department of Health Legal and Legislative Services
- [AKG DMR Release of Information Procedure](#)

### 7. Relevant standards

National Safety and Quality Health Service (NSQHS) Standards (second edition):

- Standard 2 – Partnering with Consumers

### 8. Document owner

#### Manager Health Information Management Service

Enquiries relating to this guideline may be directed to:

Title: Manager  
 Department: Health Information Management Service  
 Email: [AHS.HIMSManager@health.wa.gov.au](mailto:AHS.HIMSManager@health.wa.gov.au)

### 9. Review

This guideline will be reviewed and evaluated as required to ensure relevance and currency. At a minimum it will be reviewed within one (1) year after first issue and at least every three (3) years thereafter.

| Version | Effective from | Effective to | Amendment(s)     |
|---------|----------------|--------------|------------------|
| V2      | 23/01/2024     | 23/01/2027   | Scheduled review |

10. Authorisation

This guideline has been authorised and issued by the Director Operations and Corporate Services.

|                    |                                                             |
|--------------------|-------------------------------------------------------------|
| Authorised by      | Michael Morton – Director Operations and Corporate Services |
| Authorisation date | 23/01/2024                                                  |
| Published date     | 23/01/2027                                                  |